# Tools 4.1: Normative Frameworks — How Should We Evaluate Political Outcomes? (AD)

*Political Science — Master Notes · by Jakob V. Stangel*

**Required reading: Bueno de Mesquita**, *Political Economy for Public Policy*, **ch. 1 "Normative Frameworks"** · *Optional:* **Van Bekkum & Zuiderveen Borgesius**, "Digital welfare fraud detection and the Dutch **SyRI** judgment," *European Journal of Social Security* 23(4) 2021, pp. 323–340. *(Lecturer: Anna Denisenko — deck "4.1 Normative Frameworks." Part IV uses Bueno de Mesquita; Part V (Business & Politics) uses Baron.)*

**Theme of the lecture.** Political analysis has **two halves**: explaining **what *is*** (positive) and judging **what *should be*** (normative). This lecture equips you for the second. A **normative framework** is a **set of criteria for judging whether a policy, outcome or institution is good** — and the same policy can look **excellent under one framework and terrible under another.** We study **three**: **welfarism** (the goal is *wellbeing*), **liberalism** (the goal is *liberty*), and **egalitarianism** (the goal is *equality*). The running case is **SyRI**, the Dutch welfare-fraud algorithm a court struck down for violating privacy — a policy each framework judges differently.

> ★ **The heart of the lecture — three lenses, often three verdicts.**
> • **Welfarism (wellbeing):** judge a policy by its **consequences for wellbeing.** Two versions — **utilitarianism** (maximise the *sum* of utility) and **Pareto** (improve wellbeing *without harming anyone*).
> • **Liberalism (liberty):** judge a policy by whether it **intrudes on the private sphere.** The whole debate is **where to draw the line** between private and public — by **harm** (Mill), **property/self-ownership** (Locke, Nozick), or **freedom** (Berlin: freedom *from* vs freedom *to*).
> • **Egalitarianism (equality):** judge a policy by whether it **reduces unjust inequality** — but **equality of what?** formal rights, **opportunity**, or **outcomes**. **Rawls**: choose the rules behind a **veil of ignorance** → the **difference principle** (inequality is just only if it helps the worst-off).
> • **The payoff:** *not all good things go together.* There are real **trade-offs** between efficiency, freedom and equality — so the same facts yield **different verdicts**, and naming your framework is what makes an argument honest.

**Red thread:** *(1) Is this a positive or a normative question? (2) By which criterion are we judging — wellbeing, liberty, or equality? (3) What does each framework say about the same policy, and where do they trade off?*

**Key concepts to apply:** *positive (what is?) vs normative (what should be?) questions · normative framework = criteria for judging* · **welfarism:** *utility (Bentham) · the utilitarian optimum (maximise the sum) · the veil of ignorance (Harsanyi) · measurement/interpersonal-comparison problem · the "monster"/"Philistine" objections · trolley & transplant · discounting across generations · partiality/relationships · Pareto improvement · Pareto efficiency* · **liberalism:** *the private/public sphere · the harm principle (Mill) · harm vs offense · self-ownership & property (Locke, Nozick) · negative vs positive liberty (freedom from / freedom to — Berlin)* · **egalitarianism:** *equality of formal rights vs opportunity vs outcomes · Rawls' original position, veil of ignorance, equal-liberty & difference principle (maximin) · decreasing marginal utility & redistribution · leveling down · the equality–efficiency (incentives) trade-off · Cohen's three equalities of opportunity (bourgeois · left-liberal · socialist) · three sources of disagreement: information · self-interest · values.*

## Positive vs normative questions

***Core:*** political science asks **two kinds of question** — and this lecture is about the second.

| | Positive (explanatory) | Normative (evaluative) |
|---|---|---|
| Asks | *what **is**?* | *what **should be**?* |
| SyRI example | *Why did the Netherlands build a fraud-detection algorithm?* | *Was that algorithm a **good** policy?* |
| Settled by | facts, data, evidence | criteria/values — **not by facts alone** |

→ *Quick test:* "**Who gains and who loses** from US tariffs on Danish exports?" = **positive.** "Would imposing **retaliatory** tariffs be a **good** policy?" = **normative.**

## What is a normative framework?

***Core:*** a normative framework is a **set of criteria for judging whether a political outcome, policy or institution is good.** The same policy can look **excellent under one and terrible under another** — so the framework you pick largely decides the verdict.

The three we study:

| Framework | The goal of public policy is to promote… |
|---|---|
| **Welfarism** | **wellbeing** |
| **Liberalism** | **liberty** |
| **Egalitarianism** | **equality** |

⚠️ **"Liberalism" means several different things** — don't mix them up:

| Sense | Claim | Example |
|---|---|---|
| **IR liberalism** | states cooperate via institutions & trade | the EU; democratic peace (IR II) |
| **Philosophical liberalism** (this lecture) | policy should protect individual **liberty** | the Hague court: SyRI violated privacy |
| **Economic liberalism** | free markets, limited state | free trade, deregulation |
| **"Liberal" in US talk** | left-leaning, pro–social-programme | backs Obamacare |

*(In Denmark, **Venstre** and **Liberal Alliance** are centre-right — "liberal" in the **economic** sense.)*

**The running case — SyRI (System Risk Indication).** The Dutch government combined data from many agencies (tax, benefits, housing, employment) into an algorithm flagging people at **high risk of welfare/tax fraud** for investigation. In **2020 a Dutch court ruled the SyRI law violated the right to privacy** (Art. 8 ECHR). We'll judge it through each framework.

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## ★ Welfarism I: Utilitarianism

***Core:*** welfarism judges policy by its **consequences for wellbeing.** The classic version — **utilitarianism** — says the best policy **maximises the *sum* of utility (wellbeing) in society.**

- **Utility (Bentham):** "that property in any object whereby it tends to produce benefit… pleasure… or happiness." Utilitarianism **adds up** everyone's utility and picks the policy with the **highest total.**
- **The utilitarian optimum:** look **only at the total** (the height of the "wellbeing" bar). **Distribution doesn't matter to the verdict** — a policy can shrink one group's share and still win if the **sum** is largest.

**Why be a utilitarian?**

- **Treats everyone's happiness as equally important** — each person's utility counts once (Bentham).
- **It gives an answer to trade-offs** — by adding and comparing, it always ranks the options (most frameworks struggle to).
- **The veil of ignorance (Harsanyi):** if you chose society's rules *not knowing who you'd be* (rich or poor), you'd pick the arrangement with the highest **expected utility** = the highest **average** utility = **utilitarianism.** *(Rawls uses the same device to reach the **opposite** conclusion — see §egalitarianism.)*

**Problems for utilitarianism** (the classic objections):

- **Measurement / interpersonal comparison.** To add utility you must **measure, aggregate and compare** wellbeing *across people* — a demanding, maybe impossible, informational requirement.
- "**Monsters.**" If a **sadist** gets enormous pleasure from others' pain, and his pleasure outweighs their suffering, utilitarianism says it's *good* — because it didn't **weigh all affected parties**' utilities against that conclusion. Alarming.
- "**Philistines.**" If people get more utility from crude tastes (reality TV) than from art, should policy cater to that? Utility counts *whatever* its source.
- **Trolley & transplant.** Utilitarianism says divert the trolley to kill 1 instead of 5 — and, more disturbingly, that a surgeon should kill 1 healthy patient to harvest organs saving 5. The transplant verdict clashes hard with moral intuition.
- **Across generations.** Treating all generations equally forces **discounting the future** (how much is a benefit in 50 years worth today?) — central to climate cost-benefit analysis, and deeply contested.
- **Relationships / partiality.** Strict utilitarianism is **impartial**, but we feel special duties to our **own** children and friends — "Ethan's very cute kids." Impartial maximising can't capture that.

## ★ Welfarism II: Pareto

***Core:*** a more cautious welfarism that **never makes anyone worse off.** Its goal: **increase wellbeing without harming anyone.**

> PARETO IMPROVEMENT
>
> a move from y to x is a **Pareto improvement** if: (1) at least one person is **strictly better off**, and (2) **no one is worse off**

*Reads:* a change counts as an improvement **only if it helps someone and hurts no one.** · A policy is **Pareto efficient** if **no** Pareto improvement is possible from it (you can't help anyone without hurting someone).

- **Why Pareto? Nobody is harmed**, and you **don't need to compare wellbeing across people** (sidesteps utilitarianism's measurement problem).
- **Key concerns:** it is often **indeterminate** — many policies are efficient, and it can't rank them; and it **privileges the status quo**, because almost every real policy creates **some** losers (so almost nothing is a pure Pareto improvement).

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## ★ Liberalism: the goal is liberty

***Core:*** (philosophical) liberalism judges policy by whether it **protects individual liberty** — by "separating a public and private sphere and rigorously resisting the use of policy to infringe on the **private sphere**" (Judith Shklar).

### The key question: *where is the line?*

Liberals split life into a **private sphere** (your own business — religion, friends, what you read; the state stays out) and a **public sphere** (where policy is allowed — traffic, taxes). **All** liberals agree the line exists; they disagree on **where to draw it.** Three ways:

**(1) The harm principle (J.S. Mill, *On Liberty*, 1859).** "The only purpose for which power can be rightfully exercised over any member of a civilised community, against his will, is to **prevent harm to others.** His own good… is not a sufficient warrant."

- *The problem — harm or mere **offense**?* Hateful posts (protected US free speech vs Germany's 2017 law requiring deletion), **flag/holy-book burning** (US-protected 1989; Denmark banned Qur'an burning 2023), going to work with a contagious flu (your choice — but not during COVID). The line between **harm** and **offense** is where liberals fight.

**(2) Property / self-ownership (Locke; Nozick, 1970s).** You **own your own body** → you own **what your work produces** → so **taxing it needs a strong justification.** (A libertarian reading that shrinks the public sphere.)

**(3) Freedom — but *which* freedom? (Isaiah Berlin, 1968).**

- **Freedom *from*** (negative liberty): nobody stops you. "Congress shall make no law…" → implies a **small state** that stays out of the way.
- **Freedom *to*** (positive liberty): you actually have the **means** to act. Tax-funded schools and healthcare give people the means → implies a **larger state.**
- *The provocation:* is a **homeless person "free"** to rent a flat in Copenhagen? Negatively yes (no law stops them); positively no (no means). *(Obamacare's insurance mandate: a welfarist asks "does it raise wellbeing?"; a liberal asks "may the state **compel** you to buy insurance?")*

**Liberalism — pros & cons.** *Pros:* you own your life and choices; governments can be **wrong** about what's good for you; people with **different values** can live together in peace. *Cons:* the private/public **line is hard to draw**; it can **block welfare-raising policies**; *who* counts as freely choosing (children?); and it can **permit large inequality.**

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## ★ Egalitarianism: the goal is equality

***Core:*** egalitarianism judges policy by whether it **reduces unjust inequality.** The hard question is "**equality of *what*?**" (Amartya Sen).

### Equality of what?

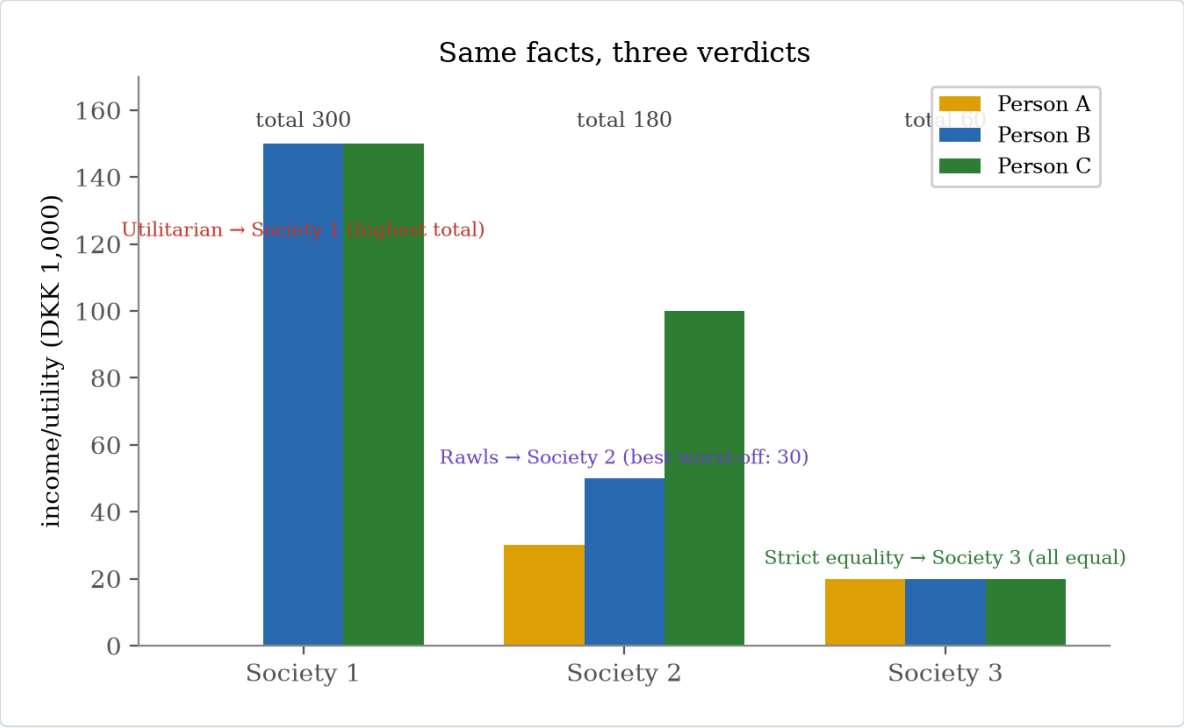
| Type | Everyone has the same… | Example |
|---|---|---|
| **Formal rights** | rights & liberties | equality before the law |
| **Opportunity** | **starting chances** to live a good life | free university |
| **Outcomes** | end-state quality of life | equal income/wealth |

*(Brazil's **race-based university quotas** push **equality of opportunity/outcomes** — but risk **equal formal rights** and efficiency.)*

### Rawls — how to choose fair rules

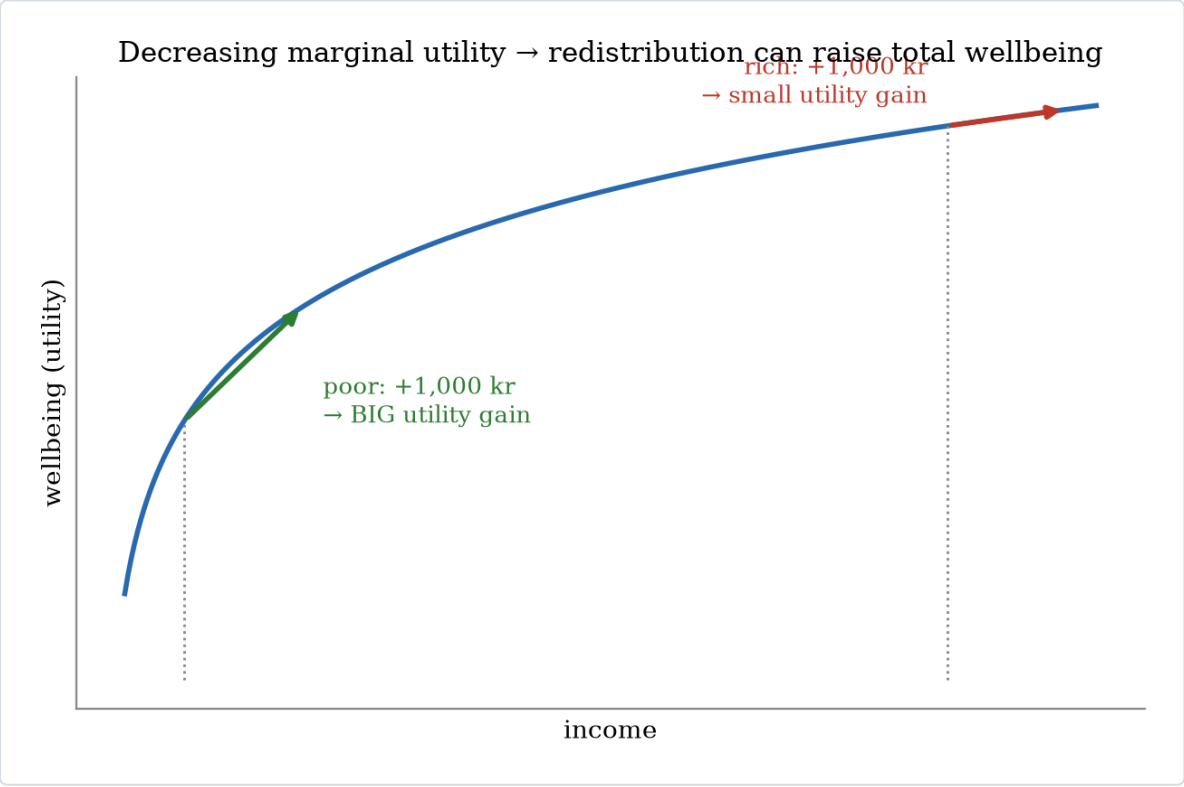
Our views on fairness are **biased by our position** (the rich favour low taxes; the poor favour redistribution). Rawls' fix: imagine choosing society's rules from an **original position, behind a veil of ignorance** — not knowing your class, gender, race, talents or values. From there, he argues we'd choose:

1. **Equal Liberty Principle** — everyone gets equal basic liberties (speech, vote, equality before the law).
2. Inequalities are allowed **only if** (a) positions are **open to all** under fair equality of opportunity, **and** (b) they **benefit the least advantaged** — the **Difference Principle** (a *maximin* rule: maximise the position of the worst-off).




**How to read it.** Same three people, three societies. **Utilitarian → Society 1** (highest **total**, 300 — never mind that Person A gets 0). **Rawls → Society 2** (the **worst-off** person does best there: 30 > 20 > 0). **Strict equality of outcomes → Society 3** (everyone equal at 20, though the total is lowest). *Same facts, three verdicts — this is why frameworks matter.*

## Why redistribution can raise total wellbeing (egalitarians & welfarists agree here)




**How to read it.** The curve is **decreasing marginal utility**: each extra krone adds **less** wellbeing than the one before. It's **steep for the poor, flat for the rich.** So moving 1,000 kr from a rich person (small utility

loss) to a poor person (big utility gain) **raises the total** — a **utilitarian argument *for* some equality.**

### Egalitarianism vs the other frameworks

- **With welfarists:** they **agree** on redistribution **when it raises total wellbeing** (the decreasing-marginal-utility argument).
- **With liberals:** they **agree** on equal **formal rights**, but clash on **redistribution** — **Nozick**: justice is about **process**; if holdings were acquired and transferred **justly**, the result is just *however unequal*.

**More from the chapter (equality of outcomes vs opportunity):**

- **Leveling down** — strict equality can be reached by making everyone **worse off** (a flaw); and strict equality can gut **incentives** to work/invest (the **equality–efficiency trade-off**).
- **Cohen's three equalities of *opportunity*: (1) Bourgeois** — remove formal/legal barriers (race, gender, class); **(2) Left-liberal** — also remove disadvantages of **birth/upbringing** (wealth, schooling, networks); **(3) Socialist** — also neutralise **natural** differences (talent, intelligence). Each is more radical than the last.
- **Key concerns:** do equal-outcome policies **violate equal rights**? how to **trade off equality vs efficiency**? and always — **equality of *what*?**

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## ★ Frameworks at a glance

| Framework | Core value | The key question it asks |
|---|---|---|
| **Utilitarian** | total wellbeing | *Does it raise the **sum** of wellbeing?* |
| **Pareto** | efficiency | *Does it help someone **without hurting anyone**?* |
| **Liberal** | freedom, rights | *Does it **intrude on the private sphere**?* |
| **Egalitarian** | equality, fairness | *Does it **reduce unjust inequality**?* |

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## Back to SyRI — one policy, three verdicts

Applying the lenses to the Dutch fraud algorithm:

- **Welfarist:** does SyRI make society **better off overall** — does catching more fraud (protecting public funds) outweigh the costs, including the chilling effect and wrongful flags? A sum-of-wellbeing calculation.
- **Liberal:** does it **intrude on the private sphere** — mass data-combination and surveillance of citizens? *This is the lens the Hague court used:* SyRI violated the **right to privacy** (Art. 8 ECHR). A welfare gain **cannot** justify crossing the private-sphere line.
- **Egalitarian:** does it fall **unequally** — disproportionately flagging poor neighbourhoods and minorities, entrenching disadvantage? Equal **treatment** and fairness, not just aggregate welfare.

→ *Each framework highlights a different problem (and a different possible justification) for the exact same policy.*

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## Why do reasonable people disagree?

***Core:*** a practical payoff — **diagnosing** a disagreement is the first step to managing it. People disagree for **three distinct reasons**:

| Source | What differs | How to address it |
|---|---|---|
| **Information** | different beliefs about the **facts** | **data, analysis, evidence** |
| **Self-interest** | different **stakes** in the outcome | appeal to **shared principles** (e.g. the veil of ignorance) |
| **Values** | different **normative frameworks** | **cannot be settled by facts alone** |

→ **Key lesson:** political analysis asks **both** *what is* and *what should be*; welfarism, liberalism and egalitarianism can give **different verdicts on the same policy**; **not all good things go together** (efficiency vs freedom vs equality); use the frameworks to **clarify your own position** and to **understand those who disagree.**

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## Key terms

| Term | Meaning |
|---|---|
| Positive vs normative | *what is* (explanatory) vs *what should be* (evaluative) |
| Normative framework | a set of criteria for judging whether a policy/outcome is good |
| Welfarism | judge policy by its consequences for **wellbeing** |
| Utilitarianism | maximise the **sum** of utility; distribution doesn't matter to the verdict |
| Utility | wellbeing/pleasure/benefit (Bentham) |
| Veil of ignorance | choose rules not knowing who you'll be (Harsanyi → utilitarianism; Rawls → maximin) |
| Pareto improvement | ≥1 person better off, **no one** worse off |
| Pareto efficient | no Pareto improvement is possible |
| Liberalism (philosophical) | judge policy by whether it protects **liberty** / the private sphere |
| Harm principle | the state may restrict you only to prevent **harm to others** (Mill) |
| Self-ownership | you own your body → own what your labour produces (Locke, Nozick) |
| Negative vs positive liberty | freedom **from** interference vs freedom **to** (having the means) — Berlin |
| Egalitarianism | judge policy by whether it reduces **unjust inequality** |
| Equality of what? | formal rights · opportunity · outcomes |
| Difference principle | inequality is just only if it benefits the **least advantaged** (Rawls) |
| Decreasing marginal utility | each extra krone adds less wellbeing (grounds redistribution) |
| Leveling down | achieving equality by making everyone worse off |

## Exam pointers

- **Classify a question** as positive or normative — the first move in any analysis.
- **State each framework's core value & key question** (the glance table) and apply all three to one policy (do it on SyRI).
- **Utilitarianism:** define the utilitarian optimum, give the **veil-of-ignorance** argument *for* it, and **two** classic objections (monsters/transplant/measurement/partiality).
- **Pareto:** define improvement & efficiency and its two weaknesses (indeterminate; status-quo bias).
- **Liberalism:** the private/public line and the **three ways to draw it** (harm · property · freedom), plus **negative vs positive liberty.**

- **Egalitarianism:** equality of what; **Rawls**' veil → **difference principle**; and why **decreasing marginal utility** links equality to welfare.
- **Diagnose a disagreement** as information, self-interest or values.

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## ★ Fun facts & memorable details (Tools 4.1: Normative Frameworks)

> The sticky bits from the normative-frameworks lecture.

- **Same policy, opposite grades.** SyRI is "efficient fraud-catching" to a welfarist, a "privacy violation" to a liberal, and "discrimination against poor neighbourhoods" to an egalitarian — one algorithm, three verdicts.
- **The veil of ignorance cuts both ways.** Harsanyi uses it to *prove* utilitarianism (maximise expected utility); Rawls uses the *same* thought experiment to *reject* it (protect the worst-off). Same device, opposite conclusions.
- **The utility monster.** Push utilitarianism hard enough and a sufficiently gleeful sadist's pleasure can "outweigh" his victims' pain — the reductio that haunts "just add up the happiness."
- **Is a homeless person free to rent a flat?** Berlin's distinction in one question: negatively yes (no law forbids it), positively no (no means). Your answer reveals how big a state you want.
- **"Liberal" is a trap word.** In the US it means left-wing; in Denmark (Venstre, Liberal Alliance) it means economically *right*-wing. Always ask *which* liberalism.
- **Leveling down.** You can make a society perfectly equal by dragging everyone to the bottom — which is why "equality" alone, with no efficiency check, isn't obviously good.
- **Decreasing marginal utility is the bridge.** The one idea where egalitarians and *utilitarians* shake hands: a krone means more to the poor than the rich, so some redistribution raises the total pie of wellbeing.

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